

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

Protecting Your Intellectual Property



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.
Create a report on fulfilment of terms of reference, based on the participation of each agent in regards to the satisfaction of IT goods contracted and received, according to rules and protocols of the organization.

Can Do Statements:

- I can understand written information about intellectual property in IT procurement.
- I can use expressions related to intellectual property in IT procurement.
- I can write a simple text about protecting intellectual property for the company I work for.

Ask your partner:

- Do you think intellectual property is important when it comes to IT procurement and development? Why?
- What legal mechanisms do you know for the protection of intellectual property?





Let's Explore!

The following is a lecture on Intellectual Property in IT Procurement.



Instructions: Read the text below.

Intellectual property in IT Procurement

When acquiring software, one of the main things customers have to be worried about is the risk of Intellectual property infringement. The scope of a software license is the main thing to have in mind. Pay careful attention to the uses allowed under the license, including location, field, and number of users, since you, as the licensee, may need to buy additional licenses. Forethought should also be provided to the right to sublicense, including to other IT suppliers.

Most of the times, it is a good idea to have a broad license with a fee consequence of increased use, instead of a narrow license that requires negotiation if use is increased. If you sign a purchase order and do not negotiate an express license then, how you use the software will be unclear.

In order to be the owner of intellectual property in software or other supplier deliverables, you need an express assignment. Sometimes clients are surprised to know that they do not own a product they have developed and invested time and efforts on. If there is no agreement to prevent the opposite, suppliers can license the work you paid them to develop to your competitor.

Some suppliers even try to make the customer assign intellectual property rights in the deliverables to the supplier. In general terms, IP mustn't be assigned away. You can also obtain an exclusive license that will give you exclusive rights to exploit the intellectual property rights.

However, having a license from a supplier doesn't always protect you from infringing a third party's intellectual property rights. As a customer, you should obtain a warranty to prevent this and an indemnity from the supplier against similar claims, and you should be informed that their insurance will cover you from any damages that can be caused by a claim made.



**Let's Practice!****Reviewing IT intellectual property basics**

Instructions: Circle the correct words to complete each sentence. Read the sentences aloud. Check your pronunciation with your instructor.

1. The Company (has / has to / have to) be warned about the possible IP problems.
2. A warranty can be (made / make / makes) to avoid problems with third party intellectual rights.
3. Express assignments must (be / done / be done) in order to own the intellectual property in software.
4. A broad license should be (buys / bought / buy) by the company to have more flexibility.
5. The company's license (be / may be / might) reviewed to ovoid possible IP problems.

**Let's Practice!****Notes About The Lecture**

Instructions: Read the paragraph. Underline all the mistakes in the paragraph. Write the new corrected version on the lines provided.

Every time your company needs to make IP procurement you need to be ready beforehand so that you actually get the best possible problems. First, you need to have house properties clear, so that you know exactly the uses you can give it and also if you need any additional license. Always try to obtain a small license so that you don't have limitations, you might need to pay some more for it but on the long run is better than a big license that probably will make you renegotiate and lose more money.





Extension Activity

The Best Way to Protect Your Intellectual Property

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for information about intellectual property protection when purchasing technological tools.
- Make a list of tips and strategy about IP protection.
- Make a poster presenting your ideas.
- Present your poster to your partners.

Self-Assessment

Yes

No

- I look for information about IP protection.
- I make a list of tips for IP protection.
- I make a poster with my tips.
- I present my poster to my partners.

☐	☐
☐	☐
☐	☐
☐	☐



Target Words

- **assignment** (noun): the transfer of a right to another party.
e.g. In order to be the owner of intellectual property in software or other supplier deliverables you need an express assignment.
- **forethought** (noun): consideration, deliberation.
e.g. Forethought should also be provided to the right to sublicense, including to other IT suppliers.
- **insurance** (noun): agreement of reimbursement in case of loss.
e.g. As a customer you should obtain a warranty to prevent this and an indemnity from the supplier against similar claims, and you should be informed that their insurance will cover you from any damages that can be caused by a claim made.
- **Intellectual Property Infringement** (noun): violation of an intellectual property right.
e.g. When acquiring software, one of the main things customers have to be worried about is the risk of Intellectual property infringement.
- **license** (verb): to grant or give a permission for an activity.
e.g. If there is no agreement to prevent the opposite, suppliers can license the work you paid them to develop to your competitor.
- **third party** (noun): someone who is not directly involved in an agreement.
e.g. However, having a license from a supplier doesn't always protect you from infringing a third party's intellectual property rights.



Learning Points

Passive voice in simple present and with modal verbs

The **passive voice** is normally used when the importance is given to the object of the sentence and either we don't know who the agent of an action is or it is not important. In formal contexts both the **simple present** and **modal verbs** are used in this voice.

The **passive voice** is used in the **simple present** to talk about situations that occur on a regular basis. The verb to be in the present simple is used as the auxiliary followed by the main verb in its past participle form.

When it is expected that something needs to be done by someone at any time, you use the passive form of the modal verb **should**.

If it is ok to do something or it is possible you use the passive voice of the modal verb **can**. While, to express possibility you can use the passive voice of the modals **might** and **may**.

The passive voice of the modal verb **must** is used to express obligation.

Examples:

*An special license **should be acquired** if you want to modify the software core features.*

*The use of someone's IP **can be legally performed** under a special license.*

*Anyhow you want to make use of the software, a license **must be required**.*

Examples

- *When acquiring software, one of the main things customers have to be worried about is the risk of Intellectual property infringement.*
- *Forethought should also be provided to the right to sublicense, including to other IT suppliers.*
- *You should be informed that their insurance will cover your from any damages that can caused by a claim made.*
- *In general terms, IP mustn't be assigned away.*

Types of Intellectual Property Licenses

Intellectual Property Licensing gives customers the right to use, but not possess, the IP.

The two main kinds of Intellectual Property Licenses are **Exclusive**, **Non-exclusive** and **Sole License**.





Learning Points

Exclusive License	With this kind of license neither person nor company different from the licensee can capitalize on the relevant intellectual property rights. If the licensor is interested in conducting any venture covered in the intellectual property, the exclusive license needs to expressly state that it is exclusive subject to those exceptions.
Sole License	This kind of license is also exclusive but the licensor reserves full rights to capitalize on the intellectual property itself. The licensor cannot grant any other sub-licenses.
Non-exclusive License	Confers the licensee the right to use the intellectual property, allowing the licensor and others to exploit the same intellectual property.